

Court No. - 21

Case :- WRIT - C No. - 31714 of 2024

Petitioner :- Aijaz Khan

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- S.M. Iqbal Hasan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Supplementary affidavit filed today is taken on record.
2. Learned counsel for the respondent-Electricity Department prays for and is granted time to obtain instructions.
3. List as fresh on 03.10.2024.

Order Date :- 27.9.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Chief Justice's Court

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Hon'ble Arun Bhansali,Chief Justice

Hon'ble Vikas Budhwar,J.

1. This writ petition is directed against the order dated 17.08.2024 passed by the respondents raising demand for consumption of electricity.

2. The challenge has been laid to the said action with the submissions that the demand has been raised against principles of natural justice and the provisions of the Electricity Supply Code, 2005 (in short, the Code, 2005'). No opportunity of hearing was accorded to the petitioner nor any document has been supplied pertaining to the alleged use by the petitioner.

3. During the pendency of writ petition, respondents have passed order dated 21.09.2024 whereby the recovery certificate issued by the respondents has been recalled.

4. In view of the above fact situation wherein the respondents have recalled the recovery certificate issued against the petitioner, the petition stands **disposed of**. It would be required of the respondents to restore electricity connection of the petitioner forthwith and in case it seeks to raise any demand, it would be required of the respondents to avail the provisions of the Code, 2005.

Order Date :- 3.10.2024

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(Vikas Budhwar, J)

(Arun Bhansali, CJ)